

Application Services Agreement

Last Modified: November 23, 2022

This Application Services Agreement (this “**Agreement**”) is a binding contract between you (“**Customer**,” “**you**,” or “**your**”) and Why the Face, LLC (“**Provider**,” “**we**,” or “**us**”). This Agreement governs your access to and use of the App.

You understand that your patients’/clients’ Photographs will be used by us for our internal research purposes. Except (i) in connection with an assignment of this Agreement pursuant to Section 17 below and/or (ii) to comply with any court order, law, or legal process, including to respond to any government or regulatory request, we will never disclose the Photographs to third parties.

THIS AGREEMENT TAKES EFFECT WHEN YOU CLICK THE “I ACCEPT” BUTTON BELOW OR FIRST ACCESS OR USE THE APP (the “**Effective Date**”). BY CLICKING THE “I ACCEPT” BUTTON BELOW OR BY ACCESSING OR USING THE APP YOU: (A) ACKNOWLEDGE THAT YOU HAVE READ AND UNDERSTAND THIS AGREEMENT; (B) REPRESENT AND WARRANT THAT YOU HAVE THE RIGHT, POWER, AND AUTHORITY TO ENTER INTO THIS AGREEMENT AND, IF ENTERING INTO THIS AGREEMENT FOR AN ORGANIZATION, THAT YOU HAVE THE LEGAL AUTHORITY TO BIND THAT ORGANIZATION; AND (C) ACCEPT THIS AGREEMENT AND AGREE THAT YOU ARE LEGALLY BOUND BY ITS TERMS.

IF YOU DO NOT ACCEPT THESE TERMS, YOU MAY NOT ACCESS OR USE THE APP.

1. Definitions.

(a) “**App**” means the WTF App as further described on Provider’s website available at www.wtfwhytheface.com.

(b) “**Authorized User**” means Customer and Customer’s employees who are authorized by Customer to access and use the App under the rights granted to Customer pursuant to this Agreement.

(c) “**Customer Data**” means, other than Aggregated Statistics, information, data, materials, and other content, in any form or medium, that is submitted, uploaded, posted, or otherwise transmitted by or on behalf of Customer or any other Authorized User to the App.

(d) “**Documentation**” means Provider’s user manuals, handbooks, instructions, and guides relating to the App provided by Provider to Customer electronically, in video/audio form, or in hard copy form.

(e) “**Photographs**” means all images and photographs submitted, uploaded, posted, or otherwise transmitted by or on behalf of Customer, its patients/clients, prospective patients/prospective clients, or Authorized Users to the App.

(f) “**Provider IP**” means the App, the Documentation, and all intellectual property provided to Customer or any other Authorized User in connection with the foregoing. For the avoidance of doubt, Provider IP includes all Aggregated Statistics and any information, materials, data, or other content derived from Provider’s monitoring of Customer’s access to or use of the App, but does not include Customer Data.

2. Access and Use.

(a) *Provision of Access.* Subject to and conditioned on your payment of Fees and compliance with all other terms and conditions of this Agreement, Provider hereby grants you a revocable, non-exclusive, non-transferable, non-sublicensable, limited right to access and use the App during the Term solely for your internal business operations by Authorized Users in accordance with the terms and conditions herein. Provider shall provide you with any necessary passwords and access credentials to allow you to access the App.

(b) *Documentation License.* Subject to the terms and conditions contained in this Agreement, Provider hereby grants you a non-exclusive, non-sublicensable, non-transferable license for Authorized Users to use the Documentation during the Term solely for your internal business purposes in connection with your authorized use of the App.

(c) *Use Restrictions.* You shall not, and shall not permit any Authorized Users to, use the App, any software component of the App, or Documentation for any purposes beyond the scope of the access granted in this Agreement. You shall not at any time, directly or indirectly, and shall not permit any Authorized Users to: (i) copy, modify, or create derivative works of the App, any software component of the App, or Documentation, in whole or in part; (ii) rent, lease, lend, sell, license, sublicense, assign, distribute, publish, transfer, or otherwise make available the App or Documentation except as expressly permitted under this Agreement; (iii) reverse engineer, disassemble, decompile, decode, adapt, or otherwise attempt to derive or gain access to any software component of the App, in whole or in part; (iv) remove any proprietary notices from the App or Documentation; (v) access the App or Documentation in order to (1) build a competitive product or service, or (2) copy any ideas, features, functions, or graphics of the App; or (vi) use the App or Documentation in any manner or for any purpose that infringes, misappropriates, or otherwise violates any intellectual property right or other right of any person, or that violates any applicable law, regulation, or rule.

(d) *Aggregated Statistics.* Notwithstanding anything to the contrary in this Agreement, Provider may monitor Customer's use of the App and collect and compile data and information related to Customer's use of the App to be used by Provider in an aggregated and anonymized manner, including to compile statistical and performance information related to the provision and operation of the App ("**Aggregated Statistics**"). As between Provider and Customer, all right, title, and interest in and to Aggregated Statistics, including all intellectual property rights therein, belong to and are retained solely by Provider. You acknowledge that Provider may compile Aggregated Statistics based on Customer Data input into the App. You agree that Provider may (i) make Aggregated Statistics publicly available in compliance with applicable law, and (ii) use Aggregated Statistics for any purpose to the extent and in the manner permitted under applicable law; provided that such Aggregated Statistics do not identify Customer, its patients/clients or Authorized Users.

(e) *Reservation of Rights.* Provider reserves all rights not expressly granted to Customer in this Agreement. Except for the limited rights and licenses expressly granted under this Agreement, nothing in this Agreement grants, by implication, waiver, estoppel, or otherwise, to Customer or any third party any intellectual property rights or other right, title, or interest in or to the Provider IP.

(f) *Suspension.* Notwithstanding anything to the contrary in this Agreement, Provider may suspend Customer's and any other Authorized User's access to any portion or all of the App if: (i) Provider reasonably determines that (A) there is a threat or attack on any of the Provider IP, (B) Customer's or any other Authorized User's use of the Provider IP disrupts or poses a security risk to the Provider IP or to any other customer or vendor of Provider, (C) Customer or any other Authorized User is using the Provider IP for fraudulent or illegal activities, (D) subject to applicable law, Customer has ceased to continue its business in the ordinary course, made an assignment for the benefit of creditors or similar disposition of its assets, or becomes the subject of any bankruptcy, reorganization, liquidation, dissolution, or similar proceeding, or (E) Provider's provision of the App to Customer or any other Authorized User is prohibited by applicable law; (ii) any vendor of Provider has suspended or terminated Provider's access to or use of any third-party services or products required to enable Customer to access the App; or (iii) in accordance with Section 4 (any such suspension described in subclause (i), (ii), or (iii), a "**Service Suspension**"). Provider shall use commercially reasonable efforts to provide written notice of any Service Suspension to Customer. Provider will have no liability for any damage, liabilities, losses (including any loss of use or loss of profits), or any other consequences that Customer or any other Authorized User may suffer or incur as a result of a Service Suspension.

3. Customer Responsibilities.

(a) *General.* The App may not be used for unlawful, fraudulent, offensive, or obscene activity. You will comply with all terms and conditions of this Agreement, and all applicable laws, rules, and regulations.

(b) *Account Use.* You are responsible and liable for all uses of the App and Documentation resulting from access provided by you, directly or indirectly, whether such access or use is permitted by or in violation of this Agreement. Without limiting the generality of the foregoing, you are responsible for all acts and omissions of Authorized Users, and any act or omission by an Authorized User that would constitute a breach of this Agreement if taken by you will be deemed a breach of this Agreement by you. You shall use reasonable efforts to make all Authorized Users aware of this Agreement's provisions as applicable to such Authorized User's use of the App and shall cause Authorized Users to comply with such provisions.

(c) *Customer Data.* You hereby grant to Provider a non-exclusive, royalty-free, worldwide right and license to reproduce, distribute, publish and otherwise use and display the Customer Data and perform all acts with respect to the Customer Data as may be necessary for Provider to provide the App and any related services to you. You will ensure that Customer Data and any Authorized User's use of Customer Data complies with applicable law. You are solely responsible for the development, content, operation, maintenance, and use of Customer Data.

(d) *Photographs.* You hereby grant to Provider a perpetual, irrevocable, non-exclusive, royalty-free, worldwide right and license to use, reproduce, display internally, modify, perform, and distribute internally all Photographs for research, improvement of the App or other Provider technologies, and for any other purpose not prohibited by applicable law.

(e) *Passwords and Access Credentials.* You are responsible for keeping your passwords and access credentials associated with the App confidential. You will not sell or transfer them to any other person or entity. You will promptly notify us about any unauthorized access to your passwords or access credentials.

4. Fees and Payment. Customer shall pay Provider the fees as described in Customer's order(s) ("Fees"). Customer shall make all payments hereunder in U.S. dollars without offset or deduction. All payments of Fees are non-cancellable and non-refundable. All Fees and other amounts payable by Customer under this Agreement are exclusive of taxes and similar assessments. Customer is responsible for all sales, use, and excise taxes, and any other similar taxes, duties, and charges of any kind imposed by any federal, state, or local governmental or regulatory authority on any amounts payable by Customer hereunder, other than any taxes imposed on Provider's income.

5. Security.

(a) *Security Obligations.* Provider will employ security measures designed to protect personal information and personal data (as defined by applicable state laws) consistent with applicable law and industry practice.

(b) *Customer Control and Responsibility.* Customer has and will retain sole responsibility for: (a) all Customer Data, including its content and use; (b) all information, instructions, and materials provided by or on behalf of Customer or any Authorized User in connection with the App; (c) the security and use of Customer's and its Authorized Users' passwords and access credentials; and (d) all access to and use of the App and Provider IP directly or indirectly by or through the Customer's computer systems or its or its Authorized Users' passwords and access credentials, with or without Customer's knowledge or consent, including all results obtained from, and all conclusions, decisions, and actions based on, such access or use.

(c) *Access and Security.* Customer shall employ all physical, administrative, and technical controls, screening, and security procedures and other safeguards necessary to: (a) securely administer the

distribution and use of all passwords and access credentials and protect against any unauthorized access to or use of the App; and (b) control the content and use of Customer Data, including the uploading or other provision of Customer Data to or through the App.

6. Intellectual Property Ownership; Feedback. As between you and us, (a) we own all right, title, and interest, including all intellectual property rights, in and to the Provider IP and (b) you own all right, title, and interest, including all intellectual property rights, in and to Customer Data. If you or any of your employees, contractors, or agents sends or transmits any communications or materials to us by mail, email, telephone, or otherwise, suggesting or recommending changes to the App or any services obtained via the App, including without limitation, new features or functionality relating thereto, or any comments, questions, suggestions, or the like (“**Feedback**”), we are free to use such Feedback irrespective of any other obligation or limitation between you and us governing such Feedback. All Feedback is and will be treated as non-confidential. You hereby assign to us on your behalf, and shall cause your employees, contractors, and agents to assign, all right, title, and interest in, and we are free to use, without any attribution or compensation to you or any third party, any ideas, know-how, concepts, techniques, or other intellectual property rights contained in the Feedback, for any purpose whatsoever, although we are not required to use any Feedback.

7. Warranty and Warranty Disclaimer.

(a) Customer Warranty. You represent and warrant that (1) you own all right, title, and interest, including all intellectual property rights, in and to all Customer Data and that both the Customer Data and your use of the App comply with (i) applicable laws, rules and regulations and (ii) this Agreement; and (2) you have obtained all consents and authorizations from your patients/clients, prospective patients/prospective clients and others necessary to grant Provider the license rights to the Photographs as set forth in Section 3(d) above, and that such consents and authorizations comply with applicable laws, rules and regulations.

(b) THE PROVIDER IP (INCLUDING THE APP) AND ANY SERVICES PROVIDED TO CUSTOMER IN CONNECTION WITH THE APP ARE PROVIDED “AS IS,” “AS AVAILABLE” AND “WITH ALL FAULTS,” AND PROVIDER SPECIFICALLY DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE. PROVIDER SPECIFICALLY DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT, AND ALL WARRANTIES ARISING FROM COURSE OF DEALING, USAGE, OR TRADE PRACTICE.

(c) THE APP IS NOT A MEDICAL DEVICE AND IS NOT INTENDED TO DIAGNOSE, TREAT, CURE, OR PREVENT ANY DISEASE OR HEALTH CONDITION. THE APP DOES NOT HAVE FDA APPROVAL. PROVIDER IS NOT RESPONSIBLE FOR ANY DECISIONS, OR ANY POTENTIAL SUBSEQUENT INCIDENTS, THAT YOU MAY MAKE OR THAT ANY OF YOUR PATIENTS/CLIENTS OR PROSPECTIVE PATIENTS/PROSPECTIVE CLIENTS MAY EXPERIENCE IN CONNECTION WITH YOUR USE OF THE APP. YOU USE THE APP AT YOUR SOLE RISK.

8. Customer Indemnification. Customer shall indemnify, hold harmless, and, at Provider’s option, defend Provider and its officers, directors, employees, agents, affiliates, successors and assigns (“**Provider Indemnitees**”) from and against any and all losses, damages, liabilities, judgments, settlements, interest, awards, fines, costs, or expenses of whatever kind, including reasonable attorneys’ fees (“**Losses**”), incurred by the Provider Indemnitees (or any of them) resulting from any third-party claim, suit, action, or proceeding (“**Third-Party Claim**”) arising from or relating to: (i) the Customer Data (including the Photographs), or any use of the Customer Data (including the Photographs) by Provider in accordance with this Agreement (including, without limitation, any Third-Party Claim that any Customer Data or Photograph infringes, misappropriates or violates a third party’s intellectual property rights, privacy rights or other rights, or violates any applicable law, rule, or regulation); (ii) Customer’s or any Authorized User’s or other Customer personnel’s negligence, fraud or willful misconduct; (iii) Customer’s or any Authorized User’s or other Customer personnel’s use of the App; or (iv) any breach of any provision of this Agreement by Customer, its Authorized Users or other personnel; provided that Customer may not settle any Third-Party Claim against Provider unless Provider consents to such settlement, and further provided that

Provider will have the right, at its option, to defend itself against any such Third-Party Claim or to participate in the defense thereof by counsel of its own choice.

9. Limitations of Liability. IN NO EVENT WILL PROVIDER BE LIABLE UNDER OR IN CONNECTION WITH THIS AGREEMENT UNDER ANY LEGAL OR EQUITABLE THEORY, INCLUDING BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR OTHERWISE, FOR ANY: (a) CONSEQUENTIAL, INCIDENTAL, INDIRECT, EXEMPLARY, SPECIAL, ENHANCED, OR PUNITIVE DAMAGES; (b) INCREASED COSTS, DIMINUTION IN VALUE OR LOST BUSINESS, PRODUCTION, REVENUES, OR PROFITS; (c) LOSS OF GOODWILL OR REPUTATION; (d) USE, INABILITY TO USE, LOSS, INTERRUPTION, DELAY OR RECOVERY OF ANY DATA, OR BREACH OF DATA OR SYSTEM SECURITY; OR (e) COST OF REPLACEMENT GOODS OR SERVICES, IN EACH CASE REGARDLESS OF WHETHER PROVIDER WAS ADVISED OF THE POSSIBILITY OF SUCH LOSSES OR DAMAGES OR SUCH LOSSES OR DAMAGES WERE OTHERWISE FORESEEABLE. IN NO EVENT WILL PROVIDER'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT UNDER ANY LEGAL OR EQUITABLE THEORY, INCLUDING BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR OTHERWISE EXCEED THE TOTAL AMOUNTS PAID TO PROVIDER BY CUSTOMER UNDER THIS AGREEMENT IN THE TWELVE (12) MONTH PERIOD PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

10. Term and Termination.

(a) Term. This Agreement begins on the Effective Date and continues in effect unless and until terminated by either party in accordance with Section 12(b) below (the "**Term**").

(b) Termination. In addition to any other express termination right set forth in this Agreement:

(i) either party may terminate this Agreement, effective on written notice to the other party, if the other party materially breaches this Agreement, and such breach: (A) is incapable of cure; or (B) being capable of cure, remains uncured 30 days after the non-breaching party provides the breaching party with written notice of such breach; or

(ii) either party may terminate this Agreement, effective immediately upon written notice to the other party, if the other party: (A) becomes insolvent or is generally unable to pay, or fails to pay, its debts as they become due; (B) files or has filed against it, a petition for voluntary or involuntary bankruptcy or otherwise becomes subject, voluntarily or involuntarily, to any proceeding under any domestic or foreign bankruptcy or insolvency law; (C) makes or seeks to make a general assignment for the benefit of its creditors; or (D) applies for or has appointed a receiver, trustee, custodian, or similar agent appointed by order of any court of competent jurisdiction to take charge of or sell any material portion of its property or business.

(c) Effect of Termination. Upon termination of this Agreement, Customer shall immediately discontinue use of the Provider IP. No expiration or termination of this Agreement will affect Customer's obligation to pay all Fees that may have become due before such expiration or termination, or entitle Customer to any refund.

(d) Survival. This Section 10(d), Sections 2(c), 2(d), 2(e), 3(d), 4, 5, 6, 7, 8, 9, 9, 12, 14, 15 and any right, obligation, or required performance of the parties in this Agreement which, by its express terms or nature and context is intended to survive termination or expiration of this Agreement, will survive any such termination or expiration.

11. Modifications. You acknowledge and agree that we have the right, in our sole discretion, to modify this Agreement from time to time, and that modified terms become effective upon your receipt of the modified terms. You are responsible for reviewing and becoming familiar with any such modifications. Your continued use of the App after receipt of the modifications will be deemed acceptance of the modified terms.

12. Geographic Restriction. The owner of the App is based in the State of Missouri in the United States. We provide the App, and any services provided via the App, for access, use and distribution only by and to persons located in the United States. We make no claims that the App or any services provided via the App are appropriate or compliant with applicable law outside of the United States. Access to and use of the App or any services provided via the App may not be legal in certain countries. If you access or use the App from outside of the United States, (i) you do so on your own initiative and are responsible for compliance with local laws and (ii) you will indemnify, hold harmless, and, at our option, defend the Provider Indemnitees from and against any and all Losses incurred by the Provider Indemnitees resulting from any Third-Party Claim arising from or relating to such access or use.

13. US Government Rights. Each of the software components that constitute the App and the Documentation is a “commercial item” as that term is defined at 48 C.F.R. § 2.101, consisting of “commercial computer software” and “commercial computer software documentation” as such terms are used in 48 C.F.R. § 12.212. Accordingly, if you are an agency of the U.S. Government or any contractor therefor, you receive only those rights with respect to the App and Documentation as are granted to all other end users, in accordance with (a) 48 C.F.R. § 227.7201 through 48 C.F.R. § 227.7204, with respect to the Department of Defense and their contractors, or (b) 48 C.F.R. § 12.212, with respect to all other U.S. Government customers and their contractors.

14. Governing Law and Jurisdiction. This Agreement is governed by and construed in accordance with the internal laws of the State of Missouri without giving effect to any choice or conflict of law provision or rule that would require or permit the application of the laws of any jurisdiction other than those of the State of Missouri. Any legal suit, action, or proceeding arising out of or related to this Agreement or the rights granted hereunder will be instituted exclusively in the federal courts of the United States or the courts of the State of Missouri in each case located in the State of Missouri, and each party irrevocably submits to the exclusive jurisdiction of such courts in any such suit, action, or proceeding.

15. Miscellaneous. This Agreement constitutes the entire agreement and understanding between the parties hereto with respect to the subject matter hereof and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to such subject matter. Any notices to us must be sent to our corporate headquarters address at 510 Baxter Road, Suite 6, Chesterfield, MO 63017, and must be delivered either in person, by certified or registered mail, return receipt requested and postage prepaid, or by recognized overnight courier service, and are deemed given upon receipt by us. Notwithstanding the foregoing, you hereby consent to receiving electronic communications from us. These electronic communications may include notices about applicable fees and charges, transactional information, and other information concerning or related to the App or the services provided via the App. You agree that any notices, agreements, disclosures, or other communications that we send to you electronically will satisfy any legal communication requirements, including that such communications be in writing. The invalidity, illegality, or unenforceability of any provision herein does not affect any other provision herein or the validity, legality, or enforceability of such provision in any other jurisdiction. Any failure to act by us with respect to a breach of this Agreement by you or others does not constitute a waiver and will not limit our rights with respect to such breach or any subsequent breaches. This Agreement is personal to you and may not be assigned or transferred for any reason whatsoever without our prior written consent and any action or conduct in violation of the foregoing will be void and without effect. We expressly reserve the right to assign this Agreement and to delegate any of our obligations hereunder. Provider shall not be deemed in default of this Agreement by reason of any failure in the performance of this Agreement if such failure arises, directly or indirectly, out of causes reasonably beyond the direct control or foreseeability of Provider, including, but not limited to, third-party computer or telecommunications equipment or software failures, default by subcontractors or suppliers, acts of God or of the public enemy, domestic or foreign governmental acts, labor, fire, flood, epidemic or pandemic, strikes, and/or freight embargoes.